



PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PLTA-26-2 / Amending UDC 1.4.3 and 5.8.8, and creating 5.8.9
Date: May 26, 2026

Background:

The item for consideration is a UDC Text Amendment. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/26/2026
- Public Services Committee 6/01/2026
- Second reading 6/08/2026
- Public Services Committee 6/15/2026
- Third and final reading 6/22/2026

Planning Commission Recommendation:

The Planning Commission heard this item at their May 18, 2026, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment as amended.

The following amendments were made by the Planning Commission (shown in blue):

UDC 1.4.3 Defined Terms

Carport. A carport ~~is an accessory building used~~ functions to offer limited protection to vehicles from the elements. The structure may be free standing or attached to another structure.

UDC 5.8.9 Carports

- c. The following setback standards shall apply:
1. Front yard carports shall be set back a minimum of 5-feet from any public sidewalk and 10-feet from the curb ~~2 feet from the street-facing property line~~. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk.
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 3. On corner lots where a carport takes direct vehicular access from a side street through the narrow dimension of the carport, the side yard setback from the street-facing side property line may be reduced to 5-feet from any public sidewalk and 10-feet from the curb ~~2 feet from the street-facing property line~~. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk. A setback reduction only applies where the carport opening directly faces and takes access from the adjacent



street. A carport oriented with its long dimension oriented towards the side street property line shall not qualify for this reduction and shall conform to the accessory building setback standards of the zone district.

Planning Commissions proposed changes are reflected in the attached ordinance.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (May 20, 2026), Staff has received no inquiries or comments from the public related to the proposed amendment. Staff has had numerous calls from citizens wanting carports on their front driveway. The project page on the website has received 29 views and no comments.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 1.4.3 AND 5.8.8 OF THE UNIFIED DEVELOPMENT CODE AND CREATING SECTION 5.8.9 CARPORTS TO CREATE DEFINITIONS AND STANDARDS FOR CARPORTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code of the City of Cheyenne (UDC).

Section 2. That on May 18, 2026, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use. A carport accessory to residential uses on lots that do not require site plan review shall be regulated exclusively under the standards of section 5.8.9 and shall not be considered an accessory building for the purposes of this Code.

Carport. A carport functions to offer limited protection to vehicles from the elements. The structure may be free standing or attached to another structure.

Section 4. That Section 5.8.8 of the UDC is amended to read:

5.8.8 Accessory Buildings

Accessory buildings associated with residential uses shall meet the following standards:

- a. There shall be a principal building constructed on the site prior to an accessory building being permitted.
- b. For double frontage, triple frontage and corner lots, the setback for a wall with vehicular access parallel to the adjacent right-of-way shall be 25', otherwise the setback for double frontage, triple frontage and corner lots shall be half of the required principal building's front setback.
- c. Accessory buildings under 200 sq. ft. shall be allowed a side and rear setback of 0-feet.
- d. An accessory building shall not encroach on any recorded easement.
- e. Up to two accessory buildings shall be allowed per lot.
- f. The maximum total building footprint of all accessory buildings shall be equal to or less than 15% of the property area.

- g. Accessory Buildings shall not have a larger building footprint than the principal buildings enclosed footprint (porches and decks do not count toward the principal buildings footprint).
- h. Exceptions to accessory building height, area, and number may be approved by conditional use approval ~~pursuant to UDC 2.2.4.~~
- i. The provisions of subsections (a), (b), (e), (f), and (g) of this section do not apply to accessory buildings approved in conjunction with a site plan.
- j. To be considered a separate building, the structures must not share any structural attachment and no part of either building may be within 3' of the other when viewed from plan view. Two structures closer than 3' or with a structural attachment shall be considered one building for the purposes of setback, area, and number.
- k. Carports accessory to residential uses that do not require site plan review are not accessory buildings for the purposes of this section and shall be regulated exclusively under section 5.8.9. Carports shall not be counted toward the number of accessory buildings permitted under subsection (e)., nor shall their footprint be counted toward the maximum total accessory building footprint under subsection (f). A structure that does not meet the definition or standards of a carport under section 5.8.9 shall be regulated as an accessory building under this section.

Section 5. That Section 5.8.9 of the UDC is created to read:

5.8.9 Carports

Carports accessory to residential uses that do not require site plan review shall meet all of the standards of this section. Carports requiring site plan review shall comply with applicable design standards and development regulations of the zone district in which they are located.

- a. A principal building shall be constructed on the site prior to a carport being permitted.
- b. A carport shall meet all standards for driveways in the zone district.
- c. The following setback standards shall apply:
 - 1. Front yard carports shall be set back a minimum of 5-feet from any public sidewalk and 10-feet from the curb. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk.
 - 2. Side and rear setbacks shall conform to the accessory building setback standards of the zone district.
 - 3. On corner lots where a carport takes direct vehicular access from a side street through the narrow dimension of the carport, the side yard setback from the street-facing side property line may be reduced to 5-feet from any public sidewalk and 10-feet from the curb. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk. A setback reduction only applies where the carport opening directly faces and takes access from the adjacent street. A carport oriented with its long dimension oriented towards the side street property line shall not qualify for this

reduction and shall conform to the accessory building setback standards of the zone district.

- d. One carport is permitted per dwelling unit. More than one carport per dwelling unit may be approved through conditional use review.
- e. A carport shall not exceed 600 square feet in total floor area, measured to the outer face of any posts, columns, or enclosing elements. A carport shall not have a larger footprint than the enclosed footprint of the principal building. A carport exceeding 600 square feet in total floor area, may be approved through conditional use review.
- f. A carport shall not exceed the height of the principal building, measured from finished grade to the highest point of the principal building's roof. A carport exceeding the height of the principal building may be approved through conditional use review.
- g. No more than two sides of a carport may be enclosed in any manner. On any side where enclosure is provided, the lower 50% of the vertical wall facade shall remain open and unobstructed for the full horizontal extent of that facade, measured from finished grade to the underside of the roof or eave. Structural columns or posts shall not be considered enclosure elements. As an alternative to the open facade requirement above, the lower 50% of any enclosed side may be filled in with solid material provided the Director finds that the proposed enclosure material, finish, color, and detailing are architecturally compatible with the principal building. A structure that does not comply with this subsection shall be regulated as a garage or enclosed accessory building under section 5.8.8.
- h. A building permit is required for any carport regulated under this section.

Section 6. That Section 5.8.9 of the UDC be added to the list of sections at the beginning of 5.8.

5.8 Supplemental Provisions

5.8.1 Wireless Telecommunication Services

5.8.2 Manufactured Homes and Parks

5.8.3 Drive-through facilities

5.8.4 Fences

5.8.5 Refuse Containers

5.8.6 Outdoor Storage

5.8.7 Oil and Gas Support Service

5.8.8 Accessory Buildings

5.8.9 Carports

Section 7. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

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or, where there is not a ceiling, to the top of the roof rafters.

- a. Stories shall begin at the first floor level that is between 3' above finished grade and 4' below grade.
- b. The minimum story shall be 9' and the maximum story shall be 14', except that the height of the first story may be as high as 20' for all non-residential buildings that are 2 stories or more.
- c. *Exception:* Where ground floor manufacturing uses, or warehouse retail is allowed in the zoning district, buildings for those uses shall have no limit on the first story and the maximum building height expressed in feet shall control.

- 2 *Half-story.* A space under a sloping roof that has the line of intersection of the roof and the exterior wall supporting the roof not more than 3' above the floor level, and in which space the possible floor area with head room of 6' or more occupies between 30% and 70% of the total floor area of the story directly beneath.

- I. **Wall plane.** Any plane of continuous vertical, horizontal, or angled or inclined orientation which represents the exterior surface of a building or structure and which is not off-set by projections or recessions of at least 18 inches. Greater required off-sets and required total area of off-sets for wall planes may be specified in the context of these regulations.

1.4.3 Defined Terms

All words and phrases shall have their ordinary and customary meanings unless the context of the word or phrase indicates otherwise. The following terms shall have the meaning given below, unless the context of the use of the term clearly indicates otherwise based on the Purposes, Intent, Design Objective or other guidance associated with its use in a particular section.

Abutting. A description of proximity where two elements share a common boundary.

Access Point. A driveway, internal access street or similar vehicular entrance or exit to the interior of a block, lot or parcel from a street.

Accessory Use. A subordinate use, clearly incidental and related to the principal use and located on the same property.

Activity Center. Places where economic and social activity are

focused. In addition, where the code specifically references PlanCheyenne or references specific types of activity centers described in PlanCheyenne the additional guidance in the Plan may be used to determine the context or applicability of a particular standard.

Adjacent. A description of the proximity of two elements which includes abutting and any surrounding vicinity where the impacts described could be reasonably assumed to extend.

Alley. A low capacity, low speed and minor street or access way typically located on the rear or side of properties and used for access to parking, service areas, accessory buildings or easements and not intended for through traffic.

Antenna. Any exterior transmitting or receiving communication device mounted on a tower, building or structure and used in communications that radiate or capture electromagnetic waves, digital signals, analog signals, radio frequencies (excluding radar signals), wireless telecommunications signals or other communication signals.

Appeal. A written request for a review of any final action or decision allowed by the provisions of this Title.

Applicant. Any person(s), firm, corporation or entity requesting permission or desiring to officially apply for any action regulated by this Title.

Average Daily Traffic (ADT). The total volume of vehicles during a given time period (in whole days greater than one day and less than one year) divided by the number of days in that time period.

Awning. A shelter constructed of non-rigid materials along windows and sidewalks at the first story of a building, and mounted on a supporting framework projecting from and supported by the exterior wall of a building.

Base Flood Elevation. The elevation of the flood having a one percent chance of being equaled or exceeded in any given year.

Berm. A mound of earth designed to provide a screen.

Best Management Practice. A technique, process, activity, or structure used to reduce pollutant discharges in stormwater. BMPs include source control practices (non-structural BMPs) and engineered structures designed to treat runoff. BMPs are most effective when used in combination and selected and designed based on site-specific characteristics.

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Bicycle Route. A portion of a system of bikeways designated by appropriate route markers which can be a bicycle trail or bikeway.

Bicycle Trail. A trail or path separated from motor vehicles and designated exclusively for bicycles or shared by bicycles and pedestrians.

Bikeway. A street designed to incorporate bicycle travel through either shared vehicle / bicycle lanes or designated bicycle lanes.

Billboard. A sign structure advertising an establishment, a message, merchandise, service or entertainment which is not located, sold, produced, manufactured or furnished at the property on which the sign is located. Billboard includes Digital Billboard as defined in this code.

Blinking. A form of flashing where the pattern of sudden illumination changes occurs with more than 2 on-off cycles per second.

Block. An area of land that is entirely bounded by streets or other boundary permitted by these regulations where streets are not appropriate based on the context.

Block Frontage. The side or sides of a block that the majority of the lots or tracts face.

BMP Maintenance. Routinely scheduled activities, as well as non-routine repairs that may be required after large storms, or as a result of other unforeseen problems, as necessary to ensure proper BMP function.

Building. Any structure used or intended for supporting or sheltering any use or occupancy.

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use. **A carport accessory to residential uses on lots that do not require site plan review shall be regulated exclusively under the standards of section 5.8.9 and shall not be considered an accessory building for the purposes of this Code.**

Building, Attached. A building having one or more party walls in common with an adjacent building.

Building, Detached. A building having no common wall or structural attachment with another building.

Building, Existing. A building erected prior to the adoption of

the ordinance codified in this Title, or prior to the effective date of a provision in this Title, whichever is earlier, or one for which a building permit has been issued, or erected in accordance with this code after its adoption.

Building, Nonconforming. A building existing or one for which a building permit has been issued at the time of the adoption of this code which does not comply with the regulations of the zoning district in which the building is located.

Building, Principal. A building in which is conducted the main or principal use of the property on which the building is situated.

Canopy. A shelter constructed of rigid materials covered with fabric, metal or other material, along windows and sidewalks at the first story of a building, and projecting from the exterior wall, which may be freestanding or supported by a building at one or more points and by columns or posts embedded in the ground at other points.

Caretaker Unit. One or more living quarters or lodging facilities located within a non-residential building for the use of employees of the use. A Caretaker Unit shall not be considered a 'residential use' or 'residential unit' for the purposes of this code but shall be considered part of the non-residential square footage for the purposes of the code. The combined square footage of all Caretaker Units shall not comprise more than ten (10) percent of the principal use's building square footage (should dwelling area exceed this amount, the living area shall be determined to be a "Mixed-use Dwelling" and a residential use for the purposes of this code). A Caretaker Unit is allowed as part of the approval of the principal use without any more restrictive approval process than that warranted for the principal use.

Carport. A carport functions to offer limited protection to vehicles from the elements. The structure may be free standing or attached to another structure.

Certificate of Compliance. A certificate issued by the Development Office which indicates that the site plan requirements have been met.

Changeable Sign. A sign whose informational content can be changed or altered by manual, electric, electromechanical or electronic means. Changeable signs do not include Digital Billboards as defined in this code.

Change of Use. Change of use constitutes at least one of the following:

1. The proposed use is appreciably different than the

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- current use;
2. There is an increase in the size of the existing building or extent of the use of the land;
 3. The use is permitted in the zoning district in which the use is located, but requires more parking than the previous use;
 4. The number of vehicle trips generated by the new use is or will be greater than the number of vehicle trips generated by the previous use as determined by the Institute of Transportation Engineers Trip Generation, latest edition;
 5. The amount of stormwater runoff or impervious (to drainage) surface area will be increased with the new use.

Channel. A natural or artificial watercourse with a definite bed and banks that conveys continuously or periodically flowing water. Interchangeable terms include creek, drainageway, river, stream, and watercourse.

City Engineer. The City of Cheyenne City Engineer, his designated representative or the City Engineering Department.

Comprehensive Plan. The general plan for land use, transportation, utilities, annexation, and community facilities prepared and maintained by the Commission, and any other more specific plan, program or policy prepared under the guidance of that plan.

Construction, New. Structures for which the construction commenced on or after the effective date of the ordinance codified in this Title.

Construction, Start of. The first placement of permanent construction of a structure (other than a manufactured home), such as the excavation of footings or foundations, or the pouring of slabs or foundations. Permanent construction does not include land preparation, such as clearing, grading and filling, nor does it include the installation of streets and/or sidewalks. For a structure (other than a manufactured home) without a basement or poured footings, the "start of construction" includes the first permanent framing or assembly of the structure or any part thereof on its piling or foundation. For manufactured home not within a manufactured home park or subdivision, "start of construction" means the affixing of the manufactured home to its permanent site. For manufactured home within manufactured home parks or manufactured home subdivisions, "start of construction" is the date on which the structure is to be affixed.

Corner lot. See "Lot, corner."

Crosswalk. Any portion of a roadway distinctly indicated for pedestrian crossing.

Cul-de-sac. A short dead-end street terminating with a vehicular turn-around area.

Curb Radii. The curved or flared portion of a street curb at driveway approaches or intersections.

Decorative Fence. A fence constructed out of materials such as wood, stone, or metal, or a combination thereof, primarily for aesthetic purposes to enhance the appearance of a property and generally not obstructing the visibility into or out of a property. A decorative fence shall not include chain link, wire, snow fences, or a standard wooden or vinyl privacy fences

Detention. The temporary storage of storm runoff in a stormwater management facility with the goals of controlling peak discharge rates and providing gravity settling of pollutants.

Detention Facility. A detention basin or alternative structure designed for the purpose of temporary storage of stream flow or surface runoff and gradual release of stored water at controlled rates.

Developer. The owner of land proposed for development, or the owner's authorized representative, or any person who causes the following to take place either directly or indirectly: division of property for the purpose of development; sells, leases or develops property, or offers or advertises or otherwise engages in business for the same; or has control or is controlled in such a way to have influence in any of the above.

Development. Any man-made change to real estate, including, but not limited to, the construction of buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling.

Development Footprint. The development footprint is the total land area that is permanently affected by development activities, and includes buildings, structures, hardscape, utilities, roads and parking areas, maneuvering areas, storage areas, areas associated with the use on the property, and areas cleared of natural vegetation and topsoil.

Digital Billboard. A billboard displaying static images controlled by electronic communications.

Dissolve. A transition between digital messages that is achieved with varying light intensity and where the first message gradually appears to dissipate and loses legibility simultaneous to the gradual appearance and legibility of the subsequent message.

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Double frontage lot. See “Lot, double frontage.”

Drive-in or Drive-up Facility. A portion of an establishment designed for retail or service to persons in automobiles, including a driveway approach, order facilities, signs and delivery windows.

Driveway. A vehicle access way located on private property.

Driveway Approach. A constructed vehicle access point within the right-of-way between the roadway and the adjacent property line.

Dwelling Unit. One or more rooms which are intended for human occupancy as a place of residence with facilities for living, cooking and eating for one family unit, manifesting around one single kitchen, excluding wet bars with no stove or range, and one single laundry facility. Cooking facilities and other accommodations, such as laundry, should be accessible to all occupants of the dwelling through internally connected spaces.

Easement. A permanent or temporary grant of right by a property owner to the public, a corporation or other person(s) for the use of a strip or parcel of land for specified purposes. Ownership shall remain with the property owner.

Electrical Sign. A sign or sign structure in which electrical wiring, connections or fixtures are used. Electrical sign does not include a digital billboard as defined in this section.

Fade. A transition between static message displays that is achieved with varying light intensity and where the first message gradually loses light intensity to the point of not being legible and the subsequent message gradually increases intensity to the point of legibility.

Family Unit. One or more persons who are related by blood, marriage, domestic partnership or legal adoption living together as a single household; or a group of not more than four (4) persons not related by blood, marriage, domestic partnership or legal adoption, living together as a single household.

Fence. A man-made partition, structure, wall or a gate erected as a dividing marker, barrier, enclosure or screening device.

Flag. A sign made of fabric or other non-rigid material with no enclosing framework containing distinctive colors, patterns, or symbols, used as identification for or a symbol of a government, political subdivision, or other entity.

Flashing. A pattern of changing light illumination where the sign illumination alternates suddenly between fully illuminated and fully non-illuminated in a time frame of less than 4 seconds.

Floor Area Ratio (FAR). The total square feet of the building divided by the total square feet of the lot the building is located on.

Foot Candle. A unit of illuminance equal to 1 lumen, uniformly incident upon an area of 1 square foot.

Freeboard. A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. Freeboard compensates for the many unknown factors that could contribute to flood heights greater than the height calculated for the design flood.

Functional turf grass. An area of living turf grass or lawn that is used regularly for human recreational purposes or domestic animal use. Functional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Garage. A building or portions of a building for the storage of automobiles or other property, accessory to the principle use of the site.

Greenway. A linear open space established along either a natural corridor, such as a stream valley, or overland along a road or railroad right-of-way converted to recreational use; a natural or landscaped course prepared for pedestrian or bicycle passage; certain designated strips or linear parks and open spaces connected and designated by the City as part of the Greenway System.

Height. When referring to a tower or other structure, height is the distance measured from the finished grade of the parcel to the highest point on the tower or other structure, including the base pad and any antenna.

High-power Transmission Lines. Transmission lines which carry sixty-nine thousand (69,000) volts or more.

Immediate. A transition between static message displays that is achieved in 2 seconds or less.

Impoundment Yard. A fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, a government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

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Improvement. Buildings, structures and all facilities of a public nature indented for public use – including streets, sidewalks, curbs, gutters, alleys and other public ways, parks, recreational facilities, water, sewage, solid waste disposal and other sanitary systems and facilities.

Infill Development. For commercial or residential parcels shall be defined by the following criteria:

1. One parcel surrounded by urban development on at least three sides (does not have to be directly adjacent to); and
2. Served by existing underground sewer and water utilities.

Infiltration. The process of percolating stormwater into the subsoil.

Interior lot. See “Lot, interior.”

Intermittent. A pattern of changing light intensity, other than that achieved with immediate, fade or dissolve transitions, where any message remains static for over 4 seconds.

Intersection. The junction of two streets.

Land Disturbance Activity. Grading, digging, cutting, scraping, or excavating of soil, placement of fill materials, paving, construction, substantial removal of vegetation, or any activity which bares soil or rock or involves the diversion or piping of any natural or man-made watercourse.

Landscape Points System. The point system used for determining the minimum vegetation requirement.

Landscaped Setback. The minimum required landscaping area on private or government-owned property which is adjacent to a property line common to a street right-of-way. Driveways and sidewalks to afford required access shall be allowed to interrupt this required space.

Landscape, Street Tree Area. The landscaped area between property line and the street, within the right-of-way.

Landscaping. Any combination of living plants, such as trees, shrubs, vines, ground covers, flowers or grass; natural features, such as rock, stone, bark chips or shavings; and structural features, including, but not limited to, fountains, reflecting pools, outside art work, screen walls, fences or benches.

Landscaping, Internal. That area that lies within the property lines not covered by buildings, parking, outside storage,

sidewalks and driveways.

Landscaping, Xeriscape. A water-saving landscape design that limits turf areas, utilizes mulches, efficient irrigation (often drip or subsurface) and use of native or drought-tolerant plant materials. When done properly, it is as lush and green as traditional landscapes, but has the benefits of lower water use and less maintenance after establishment.

Loading Space. An on- or off-street space for the standing, loading, and unloading of vehicles, people or articles.

Lot. A designated unit of land established by a plat or otherwise as permitted by law, for the transfer of ownership or to be used, developed, or built upon, whether immediate or future.

Low Impact Development (LID). An approach to land development (or redevelopment) that works with nature to manage stormwater as close to its source as possible. LID emphasizes conservation and use of on-site natural features to protect water quality. This approach implements engineered small-scale hydrologic controls to mimic the pre-development hydrologic regime of watersheds through infiltrating, filtering, storing, evaporating, and detaining runoff. The term Green Infrastructure may also be used.

Major Drainageway. Any drainage flow path mapped with an area of special flood hazard on the Flood Insurance Rate Map (FIRM).

Manufactured Home. A structure transportable in one or more sections which, in the traveling mode, is 8 body feet or more in width or 40 body feet or more in length or, when erected on site, is 320 or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning and electrical systems contained therein; except that such term shall include any structure which meets all the requirements of this paragraph except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the secretary (HUD) and complies with the standards established by HUD. For manufactured homes built prior to June 15, 1976, a label certifying compliance to the standard for mobile homes, NFPA 501, ANSI 119.1, in effect at the time of manufacture is required.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a person who holds a massage therapist

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permit pursuant to chapter 5.52, title 5, of the city code.

Moving Light. The physical change in position of any visible illumination source while lighted or the simulation of movement achieves with a pattern of sequentially illuminating visible illumination sources within close proximity to each other.

MS4 Permit. A state or federal stormwater discharge permit to regulate discharges from municipal separate storm sewer systems (MS4s) for compliance with Clean Water Act regulations; used interchangeably with the term National Pollutant Discharge Elimination System (NPDES) permit and collectively referred to as federal stormwater discharge permit.

Nonfunctional turf grass. An area of living turf grass or lawn that is not used regularly for human recreational purposes or domestic animal use. Nonfunctional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Nonpoint Source Pollution. Pollution from any source other than from any discernible, confined, and discrete conveyances, and shall include, but not be limited to, pollutants from agricultural, silvicultural, mining, construction, subsurface disposal and urban runoff sources.

Off-premise Sign. Any sign not identified as a “Billboard” and which is used for the purpose of displaying, advertising, identifying, or directing attention to a business, service, activity or place, including products or services sold or offered for sale, on premises other than the premises where such sign is displayed.

Open Space Systems. A system of various types of outdoor space, designed to function as aesthetic, recreation, and ecological support for development. Elements of the open space system can include private, common, or public open spaces.

Owner. The owner of record of a parcel of land, as recorded in the office of the county clerk.

Parapet. The architectural enhancement in the design of the façade that extends ornamental details above a roof line to the extent necessary to screen the roof and roof-top equipment.

Parcel. A contiguous unit of land owned and recorded as the property of the same persons or controlled by a single entity.

Parking Lot. An area other than a street or alley designated for the parking of five or more motor vehicles.

Parking Space. A space specially designed for the parking of a motor vehicle.

Party Wall. A wall common to two or more units which are intended to be individually owned.

Pedestrian. A person on foot or a self-propelled conveyance intended for use of persons with physical impairments.

Person. An individual, firm, corporation, partnership, or association, or any combination of these, or any other legal or commercial entity acting as a unit.

Pre-existing Towers and Pre-existing Antennas. Any tower or antenna for which a building permit or wireless telecommunications permit (WTP) was issued prior to the effective date of this Title, including permitted towers or antennas that have not yet been constructed so long as such approval is current and not expired.

Public Drainage System. The system of storm sewers, channels, culverts, creeks, flows within public streets, and associated detention and water quality structures owned and maintained by the City of Cheyenne, Laramie County, or the Wyoming Department of Transportation.

Public Land. Land owned, controlled and/or operated by a governmental unit.

Published Notice. A notice provided in accordance with Wyoming Statutes.

Recreational Vehicle (RV). A vehicle or unit primarily designed for human habitation for recreation or travel, which may include a motor home, camper, travel trailer, or park model recreational vehicle.

Redevelopment. The replacement of impervious surfaces on a developed site that is surrounded by urban development on at least three sides. Redevelopment occurs when the existing facilities are demolished and rebuilt or substantially changed through reconstruction. Resurfacing parking lots with no charge in overall dimensions or drainage patterns is not considered redevelopment even if the pavement is completely replaced.

Regional Detention Facilities. A system or parts of a system to control run-off from a defined area within a drainage basin and designed to coordinate with other similar facilities to manage the drainage basin and tributaries, typically considering areas greater than 100 acres or capacities of more than 30 acre-feet or as otherwise specified in a drainage master plan or current

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Storm Drainage Manual.

Remainder Lot. A lot or tract of land designated on a plat which is not eligible for development, or to service adjacent development, and may be reserved for future platting. A remainder lot shall not be for the purpose of sale, lease, or financing; nor be eligible for development. Remainder lots shall not be required to meet the dimensional standards of the zoning district. Developed properties, excluding land developed for agricultural purposes, are not eligible to be remainder lots. Remainder lot(s) must be referred to as "outlots", "remainder lots", or "tracts" on plats.

Right-of-way. Land dedicated and set aside for use by the public, primarily for the right of vehicle or pedestrian travel, but typically designed to include multiple and other public purposes.

Roadway. That portion of a street designed and intended primarily for vehicles.

Sanitary System. A sewer system or systems including mechanisms of collection, treatment and disposal of domestic and/or commercial sewage.

Screening. A feature used to visually separate elements on abutting or adjacent development sites.

Self-Contained Unit. A recreational vehicle equipped with its own water supply, sanitary facilities, and wastewater containment, capable of independent habitation.

Sidewalk. That portion of a street designed and intended primarily for use of pedestrians.

Sign. Any announcement, declaration, demonstration, display illustration or insignia, or other identification, that is visible from any public place or is located on private property and exposed to the public and that directs attention to a product, service, place, activity, person, institution, business or solicitation, including structures that exist to support or enhance the sign.

Sign, Animated. A sign that uses movement or change of lighting to depict action or create a special effect or scene.

Signs, Building Marker. A sign indicating the name of a building, a date and incidental information about its construction, cut into a masonry surface or made of bronze or other permanent material.

Sign, Abandoned. A sign which no longer identifies or advertises a bona fide business, service, owner, product, or activity, and/or

for which no legal owner can be found.

Sign, Electronic Message Center. A sign where alphabetic, pictographic or symbolic informational content can be changed or altered on a fixed display surface composed of electrically illuminated or mechanically driven, changeable segments.

Sign, Government. A sign erected and maintained by the United States or state of Wyoming, or any political subdivision thereof, for traffic direction or for designation of or direction to any school, hospital, historical site or public service, property or facility.

Sign, Nameplate. A sign giving only the name, address and/or occupation of an occupant or group of occupants.

Sign, Portable. A sign not permanently attached to the ground or other permanent structure, or a sign designed to be transported, including, but not limited to, signs designed to be transported by means of wheels, signs converted to A- or T-frames, and balloons used as signs. "Portable sign" shall not include umbrellas used for advertising, signs carried by individuals, and signs attached to or painted on vehicles parked and visible from the public right-of-way when such vehicle is used in the normal day-to-day operations of a business.

Site Plan. A plan of the land showing the existing and proposed features for the property.

Static. Having no motion within a particular message or copy displayed on a digital billboard.

Storm Sewer. An underground pipe system that carries stormwater from streets and other surfaces and discharges directly to a pond, stream or river; used interchangeably with the term "storm drain."

Stormwater Management. Anything associated with the planning, construction, maintenance, or regulation of facilities which collect, store, convey or treat stormwater.

Storm Water Pollution Prevention Plan (SWPPP). A written plan required under state and federal stormwater discharge permits identifying measures that will be implemented to minimize the discharge of pollutants in stormwater. Requirements for SWPPPs are specified in state and federal discharge permits. Requirements vary depending on whether the discharge permit is associated with municipal, industrial, or construction activities.

Stormwater Retrofit. A stormwater management practice

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designed for an existing development site that previously had either no stormwater management practice in place or a practice inadequate to meet the stormwater management requirements of the site.

Stormwater Runoff. Also known as *Stormwater*, means flow on the surface of the ground, resulting from precipitation. Interchangeable terms include drainage and runoff.

Street. Any public way for the movement of vehicular and pedestrian traffic which is an existing federal, state, county or municipal roadway; or a right-of-way shown upon a plat, and approved pursuant to law, whether improved or unimproved, and may comprise pavement, shoulders, curbs, gutters, sidewalks, parking areas and other areas within the right-of-way.

Street, Arterial. Refers to the functional classification of a street in the entire transportation network, which has considerable continuity over long distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Collector. Refers to the functional classification of a street in the entire transportation network, which has moderate continuity over medium distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Local. Refers to the functional classification of a street in the entire transportation network, which has limited continuity except for short distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Structure. That which is built or constructed, an edifice, or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

Tiedown. Any device designed to anchor a manufactured home or any other accessory building or structure to the ground.

Temporary Use. A use or activity that is intended to occupy the site on a non-continuous basis for more than 14 days.

Tower. Any structure that is designed and constructed primarily for the purpose of supporting one or more antennas

for telephone, radio and similar communication purposes, including self-supporting lattice towers, guyed towers or monopole towers. The term includes, but is not limited to, radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures and any tower support.

Tract. A unit of land established by a plat or otherwise as permitted by law, designated for limited or no development as part of an approved plan for a legitimate public or community purpose and designated for public or common ownership and maintenance.

Traffic-control Devices. Signs, signals, markings, or other approved geometric designs in the roadway approved by the public body or official having jurisdiction for the purpose of regulating, warning, guiding, or calming traffic.

Triple frontage lot. See "Lot, triple frontage."

Unit Space. A designated portion of a manufactured home park for the accommodation of one manufactured home.

Urban Drainage and Flood Control District (UDFCD). The metropolitan Denver drainage organization.

Utilities, Essential Services. Those utility facilities that provide end user services to customers. They include local distribution and collection lines for gas, electricity, water, sewer, telephone or cable TV services throughout neighborhoods and connect with each customer. They consist of cables, wires or pipes with limited capacities and the associated hardware, such as transformers, relays and shut-off valves. They also consist of traffic-control boxes and traffic signal installations.

Utility Facilities. Any utility facility, whether or not regulated by the Wyoming Public Service Commission, not described as an essential service utility.

Wall, Retaining. A physical barrier necessary to prevent erosion and/or retain earth.

Water Quality Capture Volume (WQCV). Represents runoff from frequent storm events such as the 80th percentile storm. The volume varies depending on local rainfall data. The WQCV is based on runoff from 0.6 inches of precipitation (approximately 0.5 inches of runoff).

Water System. A public or private system of providing potable water to a structure for domestic use.

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Woonerf. A street designed for use by pedestrian and vehicular traffic, where the pedestrian has the right-of-way.

WyDEQ. The Wyoming Department of Environmental Quality.

1.4.4 Descriptions of Uses of Land and Buildings

This section contains general descriptions associated with the uses of land and buildings. It is organized according to categories of uses and specific types of uses within each category. These categories and types correspond to the Use Table in Article 5, Zoning Regulations. Where a use appears to meet two or more descriptions or where a use is not described, the Director shall make a determination. If a use meets all of the characteristics of a use category and use type, or is so similar to a described use type as to create no anticipated differential impact, the Director may interpret that the described use includes the additional use. In making this determination, the Director shall compare: (a) the intensity and scale of the use relative to the site; (b) the typical site and building designs associated with the use; (c) the functional or operational characteristics and the potential impacts of the use on adjacent property; and (d) the potential contribution of the use to the overall character of the district or districts in which the comparable use is allowed. All other uses which cannot be interpreted in this manner are different from the described uses, are not anticipated by these regulations, and may only be allowed by a zoning text amendment.

- a. **Residential Uses.** The Residential use category is for all types of dwelling units used for permanent residence, including a variety of lot types, building types, and unit types, that may vary in the kind and classes of buildings based on the character of the neighborhood.

Attached Dwelling ("Townhouse" / "Rowhouse"). A Residential use in a building designed with a series of attached principal dwelling units separated by a single common wall. Each unit is typically situated on its own fee simple lot where party walls are used, but buildings or grounds may be owned in common. Each unit has the same orientation and front façade, and has its own private entrance to the exterior of the structure.

Detached Dwelling. A Residential use in a detached building designed as a single principal dwelling unit and situated on its own fee simple lot.

Semi-attached Dwelling ("Duplex"). A Residential use in a detached building designed as a "paired house,"

matching the appearance of a house or townhouse. A duplex may be situated on its own fee simple lot, but each unit of a side-by-side paired house shall meet all requirements to be platted on individual lots. Two units in the same building in the form of "flat-over-flat" duplex shall be considered an Accessory Dwelling, not a Semi-attached Dwelling.

Cottage Lot. A Residential use utilizing detached dwellings, semi-attached dwellings, or attached dwellings designed to face a common area (typically open space) with other shared facilities (such as shared public street access, shared parking, shared trash collection, etc.). Individual dwelling units may be on fee simple lots, a condominium, or on one larger ownership parcel. A cottage lot is also known as "bungalow court" or "cottage court". Cottage lots are subject to the provisions of UDC Section 6.6.5.

Group Housing. A residential use, Group Housing is the provision of in-home, 24-hour, 7-days a week custodial care for from 1 to 6 individuals living together as a single housekeeping unit in a single-family, detached dwelling unit. This maximum number excludes staff. This use does not include a household where custodial care is provided by a family member to from 1 to 6 persons in a single-family, detached dwelling unit. Custodial care includes the provision of in-home personal assistance, housekeeping service, supervision, and limited medical assistance to a resident or residents. Examples of Group Housing include, but are not limited to, homes for elders and disabled or mobility- impaired persons, homes for rehabilitation from drugs or alcohol addiction, or homes for formerly incarcerated persons. The Group Housing use is subject to the provisions of Section 5.7.5.d and e of the UDC.

Dormitories. A Residential use in a building that provides sleeping accommodations for a number of people.

Multi-dwelling Building ("Apartment"). A Residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type includes a variety of variations based on the permitted building scale, including "stacked flats" (3-story/tri-plex), "six-plex" (paired stacked flats), or larger apartment buildings.

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 1.4.3 AND 5.8.8 OF THE UNIFIED DEVELOPMENT CODE AND CREATING SECTION 5.8.9 CARPORTS TO CREATE DEFINITIONS AND STANDARDS FOR CARPORTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code of the City of Cheyenne (UDC).

Section 2. That on May 18, 2026, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use. A carport accessory to residential uses on lots that do not require site plan review shall be regulated exclusively under the standards of section 5.8.9 and shall not be considered an accessory building for the purposes of this Code.

Carport. A carport functions to offer limited protection to vehicles from the elements. The structure may be free standing or attached to another structure.

Section 4. That Section 5.8.8 of the UDC is amended to read:

5.8.8 Accessory Buildings

Accessory buildings associated with residential uses shall meet the following standards:

- a. There shall be a principal building constructed on the site prior to an accessory building being permitted.
- b. For double frontage, triple frontage and corner lots, the setback for a wall with vehicular access parallel to the adjacent right-of-way shall be 25', otherwise the setback for double frontage, triple frontage and corner lots shall be half of the required principal building's front setback.
- c. Accessory buildings under 200 sq. ft. shall be allowed a side and rear setback of 0-feet.
- d. An accessory building shall not encroach on any recorded easement.
- e. Up to two accessory buildings shall be allowed per lot.
- f. The maximum total building footprint of all accessory buildings shall be equal to or less than 15% of the property area.

- g. Accessory Buildings shall not have a larger building footprint than the principal buildings enclosed footprint (porches and decks do not count toward the principal buildings footprint).
- h. Exceptions to accessory building height, area, and number may be approved by conditional use approval ~~pursuant to UDC 2.2.4.~~
- i. The provisions of subsections (a), (b), (e), (f), and (g) of this section do not apply to accessory buildings approved in conjunction with a site plan.
- j. To be considered a separate building, the structures must not share any structural attachment and no part of either building may be within 3' of the other when viewed from plan view. Two structures closer than 3' or with a structural attachment shall be considered one building for the purposes of setback, area, and number.
- k. Carports accessory to residential uses that do not require site plan review are not accessory buildings for the purposes of this section and shall be regulated exclusively under section 5.8.9. Carports shall not be counted toward the number of accessory buildings permitted under subsection (e)., nor shall their footprint be counted toward the maximum total accessory building footprint under subsection (f). A structure that does not meet the definition or standards of a carport under section 5.8.9 shall be regulated as an accessory building under this section.

Section 5. That Section 5.8.9 of the UDC is created to read:

5.8.9 Carports

Carports accessory to residential uses that do not require site plan review shall meet all of the standards of this section. Carports requiring site plan review shall comply with applicable design standards and development regulations of the zone district in which they are located.

- a. A principal building shall be constructed on the site prior to a carport being permitted.
- b. A carport shall meet all standards for driveways in the zone district.
- c. The following setback standards shall apply:
 - 1. Front yard carports shall be set back a minimum of 5-feet from any public sidewalk and 10-feet from the curb. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk.
 - 2. Side and rear setbacks shall conform to the accessory building setback standards of the zone district.
 - 3. On corner lots where a carport takes direct vehicular access from a side street through the narrow dimension of the carport, the side yard setback from the street-facing side property line may be reduced to 5-feet from any public sidewalk and 10-feet from the curb. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk. A setback reduction only applies where the carport opening directly faces and takes access from the adjacent street. A carport oriented with its long dimension oriented towards the side street property line shall not qualify for this

reduction and shall conform to the accessory building setback standards of the zone district.

- d. One carport is permitted per dwelling unit. More than one carport per dwelling unit may be approved through conditional use review.
- e. A carport shall not exceed 600 square feet in total floor area, measured to the outer face of any posts, columns, or enclosing elements. A carport shall not have a larger footprint than the enclosed footprint of the principal building. A carport exceeding 600 square feet in total floor area, may be approved through conditional use review.
- f. A carport shall not exceed the height of the principal building, measured from finished grade to the highest point of the principal building's roof. A carport exceeding the height of the principal building may be approved through conditional use review.
- g. No more than two sides of a carport may be enclosed in any manner. On any side where enclosure is provided, the lower 50% of the vertical wall facade shall remain open and unobstructed for the full horizontal extent of that facade, measured from finished grade to the underside of the roof or eave. Structural columns or posts shall not be considered enclosure elements. As an alternative to the open facade requirement above, the lower 50% of any enclosed side may be filled in with solid material provided the Director finds that the proposed enclosure material, finish, color, and detailing are architecturally compatible with the principal building. A structure that does not comply with this subsection shall be regulated as a garage or enclosed accessory building under section 5.8.8.
- h. A building permit is required for any carport regulated under this section.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



CITY OF
CHEYENNE
— PLANNING & —
DEVELOPMENT

CITY OF CHEYENNE PLANNING COMMISSION

MAY 18, 2026

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code (UDC) creating 5.8.9 Carports with conforming amendments to UDC 1.4.3 Defined Terms and UDC 5.8.8 Accessory Buildings.

CASE NUMBER: PLTA-26-2

PURPOSE: To create carport regulations and allow them in the front and side yards.

PREPARED BY: Connor White, Planner II, Planning and Development

RECOMMENDED MOTION:

Move to recommend the Governing Body approve text amendments to the Unified Development Code creating section 5.8.9 Carports and amending section 1.4.3 Defined Terms and section 5.8.8 Accessory Buildings as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the City Council, Planning and Development Director, and City Engineer are authorized under UDC 2.4.1.b to bring forward text amendments on their own initiative.

The proposed text amendments are to create a definition for carports, create regulations for carports and remove carports from being considered as an accessory building. A City Council member directed staff to look into carports and how to make them more permissible in front of homes and within the side yard. Staff does relieve dozens of phone calls a year about carports. A majority of these citizens are wanting to install them on a front or side-street driveway.

Under current UDC regulations, carports are reviewed as being an accessory building. Accessory buildings are required to be 10-feet behind the front building wall of the principal building (the home) or if they are within 3-feet of the home they need to meet principal building setbacks which then requires a 25-foot front setback from the front property line. These setback requirements would ultimately not allow accessory buildings to be placed anywhere in front of the house, including on a front driveway. Many of the phone calls Staff receives are about putting carports on front driveways as there is sometimes no other access to the property. Not all homes within Cheyenne have rear access or space to place a carport behind the house.

A similar situation occurs on corner lots as well where an accessory building needs to be 25-feet from the street side property line if it has vehicular access facing the street. There are many homes that have a side loaded garage or a side driveway in which they would like to place a carport but would not be permitted under current code. Again, this may be the only access or location they would be able to place one. Similar to the front driveway, staff is proposing to allow carports on these side driveways with specific setback requirements.

There are currently many illegal carports throughout Cheyenne that are on front or side driveways which do not meet current code standards. Despite the prominence and visibility of these carports, Staff has fielded no zoning code complaints or inquiries on the legality of installed front or side street carports – the only complaint Staff received was from an individual whose property was damaged by an improperly secured front driveway carport blowing onto their property and causing damages. This may be because neighbors assume they are already legal or because they do not care about the carport on the nearby property. With the proposed amendment many of these illegal carports would become compliant, with zoning code at least. Staff is proposing to allow carports within the front setback of a home on a front driveway, with specific setback requirements.

Accessory buildings also need to meet the requirements of UDC 5.8.8 which further limits how many accessory buildings are permitted and the size of the accessory building. Staff proposes that carports not be considered accessory buildings under 5.8.8 and that they meet their own requirements under a new section 5.8.9. This would provide more flexibility for carports. Should someone not meet the requirements of 5.8.9 the carport would then be treated as an accessory building (as it is today). Staff is proposing to limit the number and size of carports, but does give the flexibility of going through the conditional use process to have more or larger carports.

Carports are something that staff receives many phone calls about throughout the year and specifically after a major storm as people want to protect their vehicles. The proposed amendments are intended to provide more flexibility and allow people to place carports on their property more easily.

PROPOSED AMENDMENT:

The proposed amendments create a definition for carports and regulations specific to carports. The proposed amendments would take carports out of being reviewed as an accessory building for any residential use that does not require a site plan, and allows them to be placed on driveways in front and on the side of a property.

Specific Text of the Proposed Amendment:

1.4.3 Defined Terms

...

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use. **A carport accessory to residential uses on lots that do not require site plan review shall be regulated exclusively under the standards of section 5.8.9 and shall not be considered an accessory building for the purposes of this Code.**

...

***Carport.* A carport is an accessory building used to offer limited protection to vehicles from the elements. The structure may be free standing or attached to another structure.**

5.8.8 Accessory Buildings

Accessory buildings associated with residential uses shall meet the following standards:

- a. There shall be a principal building constructed on the site prior to an accessory building being permitted.
- b. For double frontage, triple frontage and corner lots, the setback for a wall with vehicular access parallel to the adjacent right-of-way shall be 25', otherwise the setback for double frontage, triple frontage and corner lots shall be half of the required principal building's front setback.
- c. Accessory buildings under 200 sq. ft. shall be allowed a side and rear setback of 0-feet.
- d. An accessory building shall not encroach on any recorded easement.
- e. Up to two accessory buildings shall be allowed per lot.
- f. The maximum total building footprint of all accessory buildings shall be equal to or less than 15% of the property area.
- g. Accessory Buildings shall not have a larger building footprint than the principal buildings enclosed footprint (porches and decks do not count toward the principal buildings footprint).
- h. Exceptions to accessory building height, area, and number may be approved by conditional use approval ~~pursuant to UDC 2.2.4.~~
- i. The provisions of subsections (a), (b), (e), (f), and (g) of this section do not apply to accessory buildings approved in conjunction with a site plan.
- j. To be considered a separate building, the structures must not share any structural attachment and no part of either building may be within 3' of the other when viewed from plan view. Two structures closer than 3' or with a structural attachment shall be considered one building for the purposes of setback, area, and number.
- k. Carports accessory to residential uses that do not require site plan review are not accessory buildings for the purposes of this section and shall be regulated exclusively under section 5.8.9. Carports shall not be counted toward the number of accessory buildings permitted under subsection (e), nor shall their footprint be counted toward the maximum total accessory building footprint under subsection (f). A structure that does not meet the definition or standards of a carport under section 5.8.9 shall be regulated as an accessory building under this section.

5.8.9 Carports

Carports accessory to residential uses that do not require site plan review shall meet all of the standards of this section. Carports requiring site plan review shall comply with applicable design standards and development regulations of the zone district in which they are located.

- a. A principal building shall be constructed on the site prior to a carport being permitted.
- b. A carport shall meet all standards for driveways in the zone district.
- c. The following setback standards shall apply:
 1. Front yard carports shall be set back a minimum of 2 feet from the street-facing property line. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk.
 2. Side and rear setbacks shall conform to the accessory building setback standards of the zone district.
 3. On corner lots where a carport takes direct vehicular access from a side street through the narrow dimension of the carport, the side yard setback from the street-facing side property line may be reduced to 2 feet from the street-facing property line. The Director may reduce this setback to 0 feet through administrative adjustment upon finding that the carport will not interfere with a current or future public sidewalk. A setback reduction

only applies where the carport opening directly faces and takes access from the adjacent street. A carport oriented with its long dimension oriented towards the side street property line shall not qualify for this reduction and shall conform to the accessory building setback standards of the zone district.

- d. One carport is permitted per dwelling unit. More than one carport per dwelling unit may be approved through conditional use review.
- e. A carport shall not exceed 600 square feet in total floor area, measured to the outer face of any posts, columns, or enclosing elements. A carport shall not have a larger footprint than the enclosed footprint of the principal building. A carport exceeding 600 square feet in total floor area, may be approved through conditional use review.
- f. A carport shall not exceed the height of the principal building, measured from finished grade to the highest point of the principal building's roof. A carport exceeding the height of the principal building may be approved through conditional use review.
- g. No more than two sides of a carport may be enclosed in any manner. On any side where enclosure is provided, the lower 50% of the vertical wall facade shall remain open and unobstructed for the full horizontal extent of that facade, measured from finished grade to the underside of the roof or eave. Structural columns or posts shall not be considered enclosure elements. As an alternative to the open facade requirement above, the lower 50% of any enclosed side may be filled in with solid material provided the Director finds that the proposed enclosure material, finish, color, and detailing are architecturally compatible with the principal building. A structure that does not comply with this subsection shall be regulated as a garage or enclosed accessory building under section 5.8.8.
- h. A building permit is required for any carport regulated under this section.

ANALYSIS OF CONFORMANCE WITH REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

Carports are not something that was anticipated to be an issue by the Comprehensive Plan. Staff has received numerous phone calls from citizens and has been asked by a Council Member to investigate ways to allow carports on front driveways and side-loaded driveways. Staff has seen carports in the front or side driveways, as proposed with this text amendment, and have not received complaints.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. (The following Articles are all listed verbatim from Wyoming State Statute)

From ARTICLE 6 – ZONING of TITLE 15 CITIES AND TOWNS:

WY 15-1-601. Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

(a) The governing body of any city or town, by ordinance, may:

(i) Regulate and restrict the:

....

(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

Assessment: This amendment proposes modifying the Unified Development Code to change regulations regarding structures on a property, which is authorized by state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would promote the general health, safety and public welfare of Cheyenne. Carports allow for the protection of property (specifically vehicles) and, based on the lack of complaints, carports have minimal impact on the desired aesthetics of the community. The amendment will give more flexibility to where carports can be placed than what is allowed by current code.

REVIEW:

Staff finds that this text amendment would provide additional flexibility for carports in regard to placement on a property and also bring many illegal carports into compliance.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- News interview in April 2026, inviting the public to weigh in on the proposal (either by contacting Staff or by coming to the Planning Commission meeting)
- Legal Notice in the Wyoming Tribune Eagle published on May 9, 2026
- Internet Posting on connect.cheyennecity.org on May 11, 2026.

As of the publication of the Staff Report (May 11, 2026), Staff has received no inquiries or comments from the public on this project.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.4.1.d.

ALTERNATIVES:

1. Recommend approval of the Text Amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Text Amendment subject to conditions or modifications.
3. Recommend denial of the Text Amendment based on findings of denial. The Planning Commission must conclude that the project does not meet at least one of the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Text Amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of text amendments to the Unified Development Code creating section 5.8.9 Carports and amending 1.4.3 Defined Terms and 5.8.8 Accessory Buildings as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.